

In T 436/92 the board found that deliberate intention to harm the other party would constitute evident abuse, as would also, probably, knowledge of the possibility of harm resulting from a planned breach of confidentiality. The state of mind of the "abuser" was of central importance (confirming T 585/92). The board held that the appellant had not proven, on the balance of probability, that the publications had occurred in violation of the tacitly agreed confidentiality. In other words, the publication was not an evident abuse within the meaning of Art. 55(1) EPC 1973.

2.6. In-house knowledge not published before the priority date

It is the consistent view of the boards of appeal that in-house knowledge or matter which cannot be identified as forming part of the state of the art within the meaning of Art. 54(2) EPC is irrelevant for substantive patentability (T 1247/06, see also T 654/92, T 1001/98, T 671/08, T 2434/09).

In T 1001/98 the board did not consider it appropriate either for itself or for the examining division to base an assessment of substantive patentability (**novelty and inventive step**) upon subject-matter not identified as forming part of the state of the art within the meaning of Art. 54(2) EPC 1973. That was consistent with a number of previous decisions of the boards of appeal (such as T 654/92). In view of the appellant's declaration that the arrangement of figures 7(a) and 7(b) of the patent application was in-house knowledge not published before the priority date of the patent and given that the European search report did not reveal any corresponding document, the board reached the conclusion that the arrangement concerned could not be treated as being comprised in the state of the art within the meaning of Art. 54(2) EPC 1973 (see also T 1247/06).

2.7. Prior art acknowledged in a patent application

According to the established case law of the boards of appeal (see T 654/92, T 691/94, T 87/01, T 730/05, T 1449/05, T 211/06), the prior art cited and acknowledged in a patent application for the purpose of formulating the technical problem may be used as the starting point for assessing novelty and inventive step (T 628/07).

In T 654/92 the board stated that the expression "background art" in the English version of R. 27(1)(b) EPC 1973 was to be interpreted as referring to prior art within the meaning of Art. 54(2) EPC 1973. The practice of starting out from art known to the applicant but not public at the claimed priority date was inconsistent with the requirements of the EPC. Any such art had to be ignored in an assessment of inventive step.

On the question whether an applicant may resile from its indication of background art, either implicitly or explicitly, some boards have taken the view that, unless resiled from or clearly not prior art for other reasons, it may be relied upon as prior art (see T 654/92, T 691/94, T 730/05, T 1449/05, T 1554/05, T 211/06 and T 413/08).

In T 413/08 the board stated in the absence of any indication to the contrary, an acknowledgment of prior art by a patent proprietor might be accepted at face value. If a patent proprietor resiled from an acknowledgment of prior art at a point in time which did

not give rise to any procedural problems, the acknowledgement could no longer be relied upon.

2.8. Common general knowledge

2.8.1 Definition of "common general knowledge"

Determining what constitutes common general knowledge plays an important role in the assessment of **novelty, inventive step and sufficiency of disclosure**. In the assessment of inventive step and sufficiency of disclosure however, the skilled person's knowledge is taken to be one and the same, see chapters I.D.8.3. "Skilled person – level of knowledge" and II.C.4. "Knowledge of skilled person relevant for assessing sufficiency of disclosure" for other decisions on common general knowledge.

According to established case law, common general knowledge is to be found in basic handbooks, monographs, encyclopaedias, textbooks and reference books. It is knowledge that an experienced person in the field in question is expected to have, or at least to be aware of, to the extent that he knows he could look it up in a book if he needed it. Statements in such works are often used as references to show what common knowledge is (T 766/91, T 234/93, T 590/94, T 671/94, T 438/97, T 1253/04, T 1641/11).

However, Art. 54(2) EPC 1973 does not limit the state of the art to written disclosure in specific documents only; rather it defines it as including "any other way" by which technical subject-matter is made available to the public. Therefore, the absence of a reference to a particular document does not mean that there is no state of the art, as this could reside solely in the relevant common general knowledge, which, again, might be in writing, i.e. in textbooks or the like, or be simply a part of the unwritten "mental furniture" of the notional "person skilled in the art" (T 939/92, OJ 1996, 309; T 329/04).

In T 766/91 the board stated that by its very nature common general knowledge could be inferred from a number of sources, and proof that something was general knowledge in a particular art did not depend on proof of any particular document being published at a particular date.

In T 786/00 the board stated that, according to established case law, when considering the question of novelty, a prior art document must be interpreted in the light of common general knowledge available at its publication date. Common general knowledge which did not exist at this date, but which only became available at a later date, could not be used to interpret such a document (cf. T 229/90, T 965/92).

In T 1117/14 the application was silent about how the claimed biodegradable implant was to be produced. The board stated that, according to established case law, the skilled person may use his common general knowledge to supplement the information contained in the application. It was convinced that the method formed part of the common general knowledge in the field. Although it had not yet made its way into textbooks or monographs, it had been published in both the scientific and the patent literature and those skilled in the art relied on such articles and patent documents.

In T.2101/12 in the board's view the most suitable starting point was common general knowledge. The common general knowledge was the non-technical process of the signing of a contract at the notary's office. The board in T.2101/12 considered that the interpretation of Art. 54(2) EPC given in T.172/03 was incorrect. It held that the wording of Art. 54(2) EPC was clear and required no interpretation. Art. 54(2) EPC itself contains no limitation according to which a **non-technical process**, such as the signing of a contract at the notary's office, may not be considered state of the art.

2.8.2 Patent specifications as common general knowledge

Common general knowledge does not normally include patent literature and scientific articles (T.206/83, OJ 1987, 5; T.171/84, OJ 1986, 95; T.307/11, T.1641/11, T.571/12, T.1000/12). By way of exception, however, patent specifications and scientific publications may be considered to be common general knowledge (see T.51/87, OJ 1991, 177; T.892/01; T.26/13; T.2196/15). In T.412/09 the board stated that this is so in particular when a series of patent specifications provides a consistent picture that a particular technical procedure was generally known and belonged to the common general knowledge in the art at the relevant date (see also T.151/05, T.452/05, T.1000/12). Special conditions also prevail when a field of research is so new that the technical knowledge is not yet available in textbooks (see T.51/87, OJ 1991, 177; T.772/89; T.892/01; T.890/02, OJ 2005, 497; T.1347/11). Going back as far as T.206/83 (OJ 1987, 5) it was held that information which could only be obtained after a comprehensive search was not to be regarded as common general knowledge (see also T.654/90, T.924/03), T.1634/15 and T.1540/14 (patent documents not entirely unambiguous) summarised the case law.

2.8.3 Specialist journals as common general knowledge

In T.475/88 the board's view was that the content of specialist journals, or "standard magazines", such as the content of patent specifications did not usually belong to the common general knowledge of the average skilled person because it was not normally part of that person's active knowledge and had to be acquired through a comprehensive search (see also, e.g. T.2773/18, point 5.4 of the Reasons). In T.676/94 the board concluded that the question of whether the contents of a specialist journal formed part of the average knowledge of a skilled person depended on the facts of the case (see also T.1727/14). In T.595/90 (OJ 1994, 695), an article in a specialist journal reporting on the results of a classic test was regarded as common general knowledge.

Numerous publications in the specialist press over a fairly short time, reporting on meetings and research in a particularly active field of technology, could reflect common general knowledge in this field at that time (T.537/90). The board in T.26/13 observed that, although articles appearing in specialist journals were not, strictly speaking, part of the common general knowledge, the skilled person did read them for their own person development and so, taken together, they could permit inferences as to what that knowledge covered. See also T.2196/15 and T.2138/14 for examples of decisions in which a scientific article was considered in establishing common general knowledge.

2.8.4 Databases as common general knowledge

In T.890/02 (OJ 2005, 497) the board pointed out that the skilled person did not necessarily have knowledge of the whole technology. Having regard to the case law, the board established three criteria for correctly assessing the common general knowledge of skilled persons. First, the skills of such a person included not only having basic general knowledge of the particular prior art, but also knowing where to find such information, be it in a collection of relevant studies (see T.676/94), a scientific publication or a patent specification (see T.51/87 and T.772/89). Second, it could not be expected that, in order to identify this common general knowledge, the skilled person would carry out a comprehensive search of the literature covering virtually the whole state of the art. No undue effort in the way of such a search could be required of the skilled person (see T.171/84, OJ 1986, 95; T.206/83, OJ 1987, 5; T.676/94). Third, the information found had to be unambiguous and usable in a direct and straightforward manner without doubts or further investigation (see T.149/07).

In T.890/02 the board concluded that whilst not being *stricto sensu* encyclopaedias or handbooks, databases (a) which are known to the skilled person as an adequate source for obtaining the required information, (b) from which this information may be retrieved without undue burden and (c) which provide it in a straightforward and unambiguous manner without any need for supplementary searches, represent the common general knowledge of the skilled person as defined in the case law and can be taken into account as such in deciding whether the teaching of a document which *prima facie* destroys novelty is sufficient to be reproducible.

2.8.5 Proof of common general knowledge

Where an assertion that something is common general knowledge is challenged, the person making the assertion must provide proof that the subject-matter in question is in fact common general knowledge (T.438/97, T.329/04, T.941/04, T.690/06, T.2132/16). In the case of any dispute as to the extent of the relevant common general knowledge this, like any other fact in contention, has to be proved, for instance by documentary or oral evidence (T.939/92, OJ 1996, 309, see also T.766/91, T.1242/04, OJ 2007, 421; T.537/90, T.329/04 and T.811/06). The proof is regularly supplied in citing literature (T.475/88). According to T.766/91 and T.919/97, evidence of general technical knowledge need be submitted only if the latter's existence is disputed.

In *ex parte* case T.1090/12 the appellant drew attention to the Guidelines (G-VII, 3.1 – November 2016 version) that reads: "an assertion that something is common general knowledge need only be backed by documentary evidence (for example, a textbook) if this is contested" and submitted that this passage was binding on the boards of appeal when exercising the power of the examining division. In the case at hand, the board denied that it was obliged to provide written evidence and explained during the oral proceedings that its members knew from their work on previous cases that the features at issue were known to the person skilled in the art. It would therefore have been for the appellant to show an error in the board's appreciation, e.g. that one of the features at issue was in fact introduced into the art after the priority date of the application under appeal. There is also

no general obligation on a board to provide documentary evidence for the existence of a piece of common general knowledge. In proceedings before the EPO, a board of appeal has to respect the right to be heard and to give reasons for its decision. In cases where a board refers to common general knowledge as state of the art, it is not obliged to provide documents in every conceivable case. It is also possible for a board to state what it deems to be known, and possibly where it is known from, in a way that puts the appellant in a position to try to convince the board that its findings are erroneous. Proceeding that way respects the party's right to be heard. In this respect, the request for referral of questions to the Enlarged Board of Appeal was refused. According to T. 1370/15 this also applies in **inter partes** proceedings.

In T. 1540/14, another ex parte case, the board, after giving detailed reasons and summarising the case law on ascertaining the common general knowledge, concluded that there was not enough conclusive evidence to support the examining division's reasons for refusing the application for lack of inventive step because the features distinguishing its claim 1 from the closest prior art were obvious in view of the common general knowledge illustrated by two patent literature documents.

In ex parte case T. 2101/12 the common general knowledge was the non-technical process of the signing of a contract at the notary's office. According to the appellant, the EPO has the burden of proving the content of the common general knowledge it relies on. The appellant had at no point disputed that the process mentioned by the board was indeed common general knowledge. No documentary evidence was required to prove the extent of the cited common general knowledge.

In T. 1110/03 (OJ 2005, 302) the board stated that when evaluating evidence relating to the issues of novelty and inventive step it was necessary to distinguish between a document alleged to be part of the state of the art within the meaning of Art. 54(2) EPC 1973 – in the sense that the document itself was alleged to represent an instance of what had been made available to the public before the priority date of the opposed patent – and a document which was not itself part of the state of the art, but which was submitted as evidence of the state of the art or in substantiation of any other allegation of fact relevant to issues of novelty and inventive step. Only a document of the first kind could be disregarded on the sole ground that it was post-published; documents of the second kind did not stand or fall by their publication date even on issues of novelty and inventive step. Similarly a technical review article is by definition an account of the common general knowledge in the art prior to its own publication date – which could bear inter alia on the issue of enabling disclosure of a prepublished document and hence on the novelty of claimed subject-matter (T. 1625/06, T. 608/07, T. 777/08).

In T. 608/07 the respondent tried to query the relevance of D6 because it was published after the priority date of the patent in suit. The board stated that D6 related to published course material of a university and to subject-matter well known in the art for many years. Hence, albeit published after the priority date of the patent in suit, D6 provided indirect evidence for common general knowledge.